

25STCV33683 25STCV33683

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Case Number: 25STCV33683 Hearing Date: July 1, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 1, 2026 TRIAL DATE: NOT SET

CASE: Kuei-Chuan Daichi Kevin Lih v. Chugo

Eddie Rinoie, et al.

CASE

NO.: 25STCV33683

(1) MOTION

TO DISMISS FOR FORUM NON CONVENIENS

(2) DEMURRER

TO COMPLAINT

(3) MOTION

FOR SANCTIONS

MOVING

PARTY: (1)(2)(3) Defendants Chugo Rinoie and

Lili Shih

RESPONDING

PARTY(S): (1)(2)(3)

Plaintiff Kuei-Chuan Lih

TENTATIVE RULING:

Defendants'

Motion to Dismiss for Forum Non Conveniens is GRANTED.

Defendants'

Demurrer to the Complaint is MOOT.

Defendants'

Motion for Sanctions is MOOT.

Dismissal

is entered this date without prejudice.

Moving Parties to give notice.

BACKGROUND

This

is a fraud and conversion action. Lih alleges that his aunt and uncle misappropriated his grandmother's business interests and assets to steal his inheritance.

DISCUSSION:

Motion

to Dismiss for Forum Non Conveniens

Defendants move to dismiss this action under the doctrine of forum non conveniens. The record as a whole establishes that Japan is a more convenient forum under the circumstances of this case.

Legal

Standard

Code of Civil Procedure Section 410.30(a), which codifies the

doctrine of forum non conveniens, states: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." "On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard." (Stangvik v. Shiley Inc. (1991) 54 Cal.3d 744, 751, **bold emphasis added.**)

In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.

(Stangvik, *supra*,
54 Cal.3d 744, 751 [Citations omitted].)

The balancing of private and public interests is a task squarely within the trial court's discretion. . . . As noted in Stangvik, the analysis is twofold. "In determining whether to grant a motion based on forum non conveniens, the court first must make a threshold determination whether the alternate forum is a suitable place for trial. This is a nondiscretionary determination." Indeed, in Stangvik the Supreme Court expressly rejected defendants' suggestion that the suitability of the alternative forum is part of the discretionary determination of the balance of conveniences. 2 Only if it finds the alternative forum suitable does the court proceed to the discretionary exercise of balancing the private interests of the litigants and the interests of the public in retaining the action in California. In assessing suitability, however, "There is no balancing of

interests in this decision, nor any discretion to be exercised."

(American Cemwood

Corp. v. American Home Assurance Co. (2001) 87 Cal.App.4th 431, 436

[Citations omitted].)

Suitability

of Alternate Forum

The Court finds that Defendants have

demonstrated that Japan provides a suitable alternative forum.

A

forum is suitable if there is jurisdiction and no statute of limitations

to bar

the action. (Morris v. AGFA Corp. (2006) 144 Cal.App.4th 1452, 1646.)

Suitability may be established by a defendant's stipulation to submit to the forum's jurisdiction and waive or toll any controlling statute of limitations.

(Hahn v. Diaz Barba (2011) 194 Cal.App.4th 1177, 1190; Stangvik,

supra, 54 Cal.3d at 752.) Both Defendants expressly state that they will

stipulate to the jurisdiction of the Japanese court system and to waive any

controlling statute of limitations for one year from the date of filing of the

motion. (Declaration of Chugo Rinoie ISO Mot ¶ 13; Declaration of Lili Shih ISO

Mot. ¶ 2.)

Lih asserts that the stipulation is

inadequate because Defendants only stipulate to the jurisdiction of the

Yokohama Family Court and do not agree to toll the statute of limitations. Lih

offers no authority for this position.

Nor does he explain why the Yokohama Family Court is an unsuitable or

unavailable form within Japan, or why Defendants' agreement to toll the statute

of limitations would not permit him to timely bring an action in Japan, or why

Defendants' agreement would not also submit them to the jurisdiction of other courts

in Japan.

Lih also contends that the stipulation

is ineffective because it does not address the "Lili Shih Trust" named in the

Complaint. A trust is not a proper party because it can neither sue nor be sued,

and Lih has not named any individual as trustee of the trust. (See, e.g. Presta

v. Tepper (2009) 179 Cal.App.4th 909, 914.) The only proper parties who have been named in this action are the individual Defendants, and both have stipulated to the suitability of Japan as an alternate forum. Defendants have carried their burden in this respect.

Finally, Lih argues that Defendants are not entitled to move for dismissal because they have acted with unclean hands with respect to discovery issues. Contrary to Lih's assertions, discovery disputes in this Court do not bear upon the issue of the suitability of Japan as a forum for the litigation. Accordingly, Lih's argument on this point does not impact the Court's suitability analysis.

To the extent that Lih's argument is that equitable balancing requires the Court to take Defendants' alleged unclean hands into consideration in the general forum non conveniens analysis, the Court does not find the argument well taken. Discovery conduct is simply a different issue than the appropriate forum for a case. Moreover, even if the Court were to consider discovery conduct, the balance of the equities does not favor the litigation proceeding in this forum merely because of the discovery issues that Lih identifies. Indeed, while the Court does not reach Defendants' simultaneously-filed motion for sanctions, the issues raised in that motion, to the extent that discovery conduct matters, cut against Lih's argument.

Balancing of Interests

Upon weighing the various interests implicated by this motion, the Court finds that the balance of interests favors dismissal in favor of the alternative forum.

1. Private Interests

Defendants argue that the private interests of the parties favor dismissal of this matter for forum non conveniens. "The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease to access sources of proof, the cost of obtaining attendance

of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (Stangvik, supra, 54 Cal.3d at 751.)

Although

neither party provides direct evidence of the availability of witnesses and proof, the undisputed record demonstrates that most of the essential proof and witnesses are in Japan, not California. Lih alleges in his Complaint that his grandmother, Ranko Rinoie, amassed sizeable assets from a restaurant business based in and operating out of Yokohama, Japan. (Complaint ¶¶ 1-13.) Lih claims that after his father’s death in 2017, his grandmother became dependent on the Defendants, his aunt and uncle. (Complaint ¶¶ 38-39.) Lih alleges that Defendants used their position and influence with Ranko to divert company funds and procure a fraudulent will that removed Lih from his share in the business. (Complaint ¶¶ 39, 50.) Defendants allegedly used this forged document to perpetrate a fraud on the Japanese courts and divest Lih of his rightful inheritance. (¶¶ 50-52.) Lih claims that Defendants transferred some portion of these ill-gotten gains into California businesses and real properties. (Complaint ¶ 39.)

It is undisputed that the Will at issue, whether valid or not, was prepared in Japanese and executed in Yokohama City, Japan. (See Declaration of Chugo Rinoie ISO Mot. Exh 1; Stuart Supp. Decl. Exh. B.) Moreover, despite his protestations that many of the alleged fraudulent transfers involved California properties and assets, Lih does not dispute that the estate to which he claims entitlement is an estate of a Japanese citizen, located in Japan, involving Japanese business interests, and where the diversion of assets, although destined for California, occurred in Japan. It is thus facially apparent that many of the relevant records and witnesses will be found in Japan. As Defendants state, the Court cannot compel out-of-state witnesses to appear if they do not wish to participate in this action. (Code Civ. Proc. § 1989; Toyota Motor Corp v. Superior Court (2011) 97 Cal.App.4th 1107, 1113-14 [section 1989 applies to depositions].) Lih’s focus on Defendants’ assets presumes that a fraudulent transfer occurred into those assets, but it is that threshold question that is the essential issue of this action.

2. Public Interests

Turning to the public interest, Defendants contend that these factors also weigh in favor of dismissal. Although the

public factors do not weigh as strongly in favor of dismissal as the private factors, the Court tends to agree.

The

public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (Stangvik, *supra*, 54 Cal.3d at 751.)

There is also an interest in avoiding a California court being required to interpret the law of foreign jurisdictions. (*Id.*) That said, courts can and do routinely apply the law of foreign countries when necessary. (*Animal Film, LLC v. D.E.J.* (2011) 193 Cal.App.4th 466, 475.)

As

Defendants argue, this action is on its face a dispute concerning a Japanese citizen's estate and whether Lih was deprived of money from that estate to which he is entitled. (See generally Complaint.) The underlying rights and obligations of the various parties would necessarily arise under Japanese law, concern Japanese businesses, and concern conduct which in some significant part occurred in Japan. That said, it is undisputed that both Lih and Shih are California residents. Further, while Rinoie contends that he has been residing in Japan since November of 2025 (Rinoie Decl. ¶ 12), he does not dispute Lih's statements that Rinoie has worked and lived in California for most of the last three decades. (See Declaration of Kuei-Chuan Lih ISO Opp. ¶¶ 34-38.) California has a significant interest in providing a forum for its residents. (See *Animal Film*, *supra*, 193 Cal.App.4th at 475.) Nor is there any showing that the Court's calendar will be overly congested by this action to the degree contemplated by this line of authority, notwithstanding Lih's voluminous and uncivil filings. Similarly, there is no evidence that this case would ask a jury to decide a matter in which it has little concern.

On balance, however, the Court

concludes that the interests weigh in favor of dismissal. Although this appears to be a dispute between California residents, the seed crystal of this action is a Japanese estate involving Japanese businesses, and their disposition in a Japanese court under Japanese inheritance laws. Practical issues concerning the availability of proof regarding Lih's central allegations and the proper application of the governing law lead the Court to conclude that California is a less convenient forum than Japan for this dispute. The Court finds this to be

so notwithstanding California's strong interest in resolving disputes between its own residents. On that basis, the Court grants the motion to dismiss.

Plaintiff's

Objection to Supplemental Declaration

Lih objects to the Supplemental

Declaration of Gordon Stuart in support of the motion. The Court rejects Lih's arguments.

Defendants admitted in their moving

papers that their exhibits included a series of documents in untranslated Japanese, attributing the absence of a translation to their need to bring this motion contemporaneous with a demurrer. The motion stated that a translation would be forthcoming, and the supplemental declaration purports to offer that translation.

Lih argues that the Court should

disregard the supplemental declaration because it is untimely. The Court disagrees. Late filings may be considered in the Court's discretion, and Lih makes no showing of prejudice by the timing of this translation.

Lih also objects to the declaration as

lacking personal knowledge and foundation, as being speculative, irrelevant, hearsay, unfairly prejudicial and an improper legal conclusion, and as failing to authenticate the Japanese documents. These boilerplate objections are **OVERRULED**.

Lih further asserts that the declaration does not demonstrate that the translator was a qualified Japanese interpreter. Not so. The declaration includes sworn affidavits from the translator demonstrating that he is a registered Japanese interpreter and providing his registration number. (See Supplemental Declaration Exhs. A-F.) Lih also asserts without explanation that the documents are improperly translated, unreliable, or incomplete. These arguments go to the weight of the evidence, not its admissibility. The Court sees no basis to refuse to consider the translated documents.

Conclusion

Accordingly, Defendants' Motion to

Dismiss for Forum Non Conveniens is **GRANTED**.

Demurrer
to Complaint

Defendants demur to the Complaint.
Because the Court has granted the Motion to Dismiss, the Demurrer is MOOT.

Motion
for Sanctions

Defendants move for sanctions against
Lih. Because the Court has dismissed the action for forum non conveniens,
Defendants' Motion for Sanctions is MOOT.

CONCLUSION:

Accordingly, Defendants' Motion to Dismiss
for Forum Non Conveniens is GRANTED.

Defendants'
Demurrer to the Complaint is MOOT.

Defendants'
Motion for Sanctions is MOOT.

Dismissal
is entered this date without prejudice.

Moving Parties to give notice.

IT IS
SO ORDERED.

Dated: July 1, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.